Subject: Re: The Proceedings for Ms Vida Reid (2023/3361) and Forward Focused Group Pty Ltd (2023/4494) – Stay of Proceedings

Dear Ms. Dickinson and ART,

I acknowledge receipt of your correspondence Ms. Dickinson dated 28 January 2025 regarding my request for a stay of proceedings in matters 2023/3361 and 2023/4494 before the Administrative Appeals Tribunal (AAT). I respond as follows.

I thank you for forwarding my email to the correct ART email address to prevent delay, however, I write to formally address the unauthorized dissemination of my confidential submission, pertaining to my NDIS banning order, to a third-party lawyer Mr. Monks representing my husband. Such actions constitute a breach of confidentiality and procedural impropriety, contrary to established legal principles protecting the integrity of tribunal proceedings. This action raises significant concerns regarding procedural fairness and confidentiality.

As these matters are currently under consideration by the AAT, I respectfully request that the Tribunal hold the relevant parties accountable for this breach and ensure that all future proceedings adhere to the highest standards of confidentiality and procedural integrity.

I urge and trust the ART to give due consideration to this breach and concerns and take appropriate measures to ensure the integrity of the proceedings. This is particularly pertinent as it directly impacts the question of whether our matters should remain separate to preserve the distinct confidentiality and integrity of each case.

In the matter of *Re Minister for Immigration and Multicultural Affairs; Ex parte Lam* (2003) 214 CLR 1, the High Court underscored the importance of procedural fairness in administrative proceedings. It is imperative that these standards are upheld to maintain the integrity and confidence in the tribunal process.

Furthermore, the principle of individual justice, as emphasized in *Johnson v. Johnson* (2000) 201 CLR 488, supports the necessity for separate proceedings where distinct interests are at stake. The conflation of my case with that of my husband's not only undermines procedural integrity but also deprives me of a fair and impartial hearing, violating the principles of natural justice.

I formally request that my matter, and that of Forward Focus Group, be separated from my husband's. The argument that our matters are inextricably linked is unfounded and unjust, as we are distinct individuals entitled to independent and fair consideration of our cases. It is paramount that the Tribunal intervene to rectify this situation, which has persisted for over two years, causing undue hardship and delay.

1. The Respondent’s Previous Position on Stay Orders

Ms Dickinson’s email states that the Respondent is considering my stay application but requires confirmation regarding Mr. Simon Reid’s position. I respectfully assert that this request is irrelevant to my application.

The Respondent’s **own submissions dated 29 November 2023** explicitly argued that the AAT proceedings could prejudice concurrent investigations, justifying a stay. The key points from the Respondent's submission include:

- "Criminal proceedings will be potentially jeopardized if witnesses to those proceedings also give evidence in these AAT proceedings" (*Respondent’s Submissions, 29 November 2023, Paragraph 10*).
- "The Tribunal must exercise care in ensuring no prejudice arises to the concurrent investigations or future proceedings" (*Paragraph 12*).

The Respondent cannot now contradict itself by suggesting that my matters should proceed when **the factual basis for the previous stay application remains unchanged**. A stay must be granted to maintain consistency and uphold principles of procedural fairness.

2. My Legal Standing is Independent from Mr. Simon Reid

The Tribunal must assess my application **on its own merits**, independent of Mr. Simon Reid. The notion that my application should be contingent upon his position is legally unsound and contravenes my individual rights under *Kioa v West* (1985) 159 CLR 550. The Tribunal is obligated to ensure **procedural fairness for each applicant separately**.

Furthermore, throughout my arrest, detention, and court hearings brought on by the respondant, the authorities repeatedly asserted that I used Forward Focused Group Pty Ltd (FFG) as a vehicle to commit alleged offenses. Given that the Respondent has consistently linked my personal matter with FFG's, it is appropriate and necessary for both matters to be stayed together to ensure procedural fairness and consistency. The Respondent’s assumption that my case is inherently tied to Mr. Reid is erroneous, quite frankly dishonest, unethical, without merit and undermines my legal rights as an independent applicant.

3. Procedural Unfairness and Model Litigant Obligations

The Australian Government Solicitor (AGS) and the Respondent are subject to the **Model Litigant Principles**, which require them to act fairly and efficiently. The AGS’s request to delay my application pending Simon Reid’s response is an unnecessary procedural hurdle that violates these obligations.

Additionally, the Tribunal is bound by its **informality principle**, ensuring that proceedings are conducted without undue technicality. Unjustified procedural delays contravene the spirit of the AAT Act and undermine public confidence in the fairness of these proceedings.

4. Misconduct by the NDIA and Australian Border Force (ABF)

My submissions on **28th Jan 2025** include **legal correspondence from Hammond Legal (Exhibit VR-3)**, which documents serious procedural violations:

- On **26 September 2024**, Australian Border Force (ABF) detained me, my husband, and my children for **three hours** at Perth International Airport.
- **ABF officers searched my belongings, including those of my child with disabilities.**
- **ABF detained us and ABF officers seized my electronic devices and stated they had copied sensitive, legally privileged materials and denied us any legal contact or rights.**
- ABF officers informed me that the search was triggered by a direct request **from the NDIA**.

This constitutes **an abuse of process**, violating my fundamental rights. **The Tribunal must** take these events into account, as they reflect a pattern of unfair treatment by regulatory authorities.

While the **criminal charges against me were dismissed on 23 February 2024** due to lack of prosecution (*Exhibit VR-2*), the Respondent has continuously referenced ongoing investigations to justify its procedural stance in what appears as a bullying technique and abuse of power to prevent natural course of justice taking place. However, these investigations remain unresolved, and their continuation presents a substantial risk of prejudicing any future proceedings or findings. Furthermore, the unlawful actions of the NDIA and ABF, including improper data seizures and harassment, further necessitate a stay to ensure procedural fairness.

5. Systematic Targeting and Harassment by the NDIA and ABF

Further, my affidavit details systemic harassment, including:

- ABF officers explicitly stated that I had been "put on a list and flagged to be stopped every time" I travel internationally.
- ABF officers made **my children go through humiliating searches**, including my minor daughter's personal belongings.
- Officers disregarded **legal professional privilege**, refused me the right to contact my lawyer, and copied sensitive legal documents.
- My daughter, Atrisa, was later stopped **alone** by ABF, interrogated, and questioned without parental consent while being observed by officers involved in my prior stop.
- The NDIA pressured a former colleague, Virginie Fanny-Dulloo, by **coercing her into providing a statement against me under threat of prosecution.**

These events paint a picture of **systematic abuse and procedural unfairness**, necessitating urgent Tribunal intervention.

6. High Court Accountability & Potential Jurisdictional Error

The Tribunal must also be aware that its actions, or inaction, may constitute a **jurisdictional error**, making it subject to review by the High Court under **Section 75(v) of the**

Constitution. The AAT has an obligation to ensure procedural fairness and adherence to natural justice.

Potential grounds for judicial review include:

- **Denial of procedural fairness** by failing to assess my stay request independently of Simon Reid.
- **Allowing the AGS and Respondent to contradict themselves, abuse their position of power** without accountability.
- **Ignoring evidence of systemic misconduct** by the NDIA and ABF, which directly impacts the fairness of my case.
- **Permitting undue delay tactics** that breach Model Litigant obligations.

If the AAT fails to address these procedural deficiencies, I reserve the right to seek **judicial review in the High Court**, challenging the Tribunal's actions on the basis of jurisdictional error and breach of statutory duty.

7. Request for Immediate Confirmation of Stay

Given the **Respondent's own prior position** supporting a stay, and the **clear procedural and fairness concerns raised in my case**, I request the Tribunal to:

- **Immediately grant a stay** in proceedings 2023/3361 and 2023/4494.
- **Disregard the Respondent's attempt to delay the matter based on Simon Reid's position.**
- **Separate the matters immediately in order to uphold fair justice.**
- **Require the Respondent to clarify why it has shifted from its prior stance on stay orders, and basing their response on Mr. Simon Reid's response.**
- **Holding the respondent to account for what appears to be their bullying behaviour, abuse of power and delay tactics.**

I trust that the Tribunal and the Respondent will act in accordance with their obligations and provide confirmation of the stay without undue delay.

Yours sincerely,

Vida Reid